

**CHAPTER xxvii.**

An Act to authorise the Burgess Hill Water Com-
pany to acquire lands to construct new works
to extend their limits for the supply of water
to raise further moneys and for other purposes.
[28th May 1925.]

A.D. 1925.

WHEREAS in the year one thousand eight hundred and seventy certain persons formed themselves into a water company under the name of the Burgess Hill and St. John's Common Water Company (Limited) (hereinafter referred to as "the limited company") for the purpose (inter alia) of supplying with water Burgess Hill and St. John's Common and other places in the county of Sussex and by the Burgess Hill and St. John's Common Water Order 1871 confirmed by the Gas and Water Orders Confirmation Act 1871 and the Burgess Hill and St. John's Common Water Order 1877 confirmed by the Gas and Water Orders Confirmation Act 1877 further powers were conferred on the limited company :

And whereas by the Burgess Hill Water Act 1886 the limited company were dissolved and re-incorporated under the name of the Burgess Hill Water Company (hereinafter referred to as "the Company") and further powers were conferred on the Company by that Act the Burgess Hill Water Act 1901 the Burgess Hill Water Order 1908 confirmed by the Gas and Water Orders Confirmation Act 1908 and the Burgess Hill Water Company (Modification of Charges) Order 1922 dated

A.D. 1925. August eighteenth one thousand nine hundred and twenty-two made by the Minister of Health under the Water Undertakings (Modification of Charges) Act 1921 (11 & 12 Geo. 5 c. 44):

And whereas the share and loan capital which the Company are authorised to create and issue or raise by the said Acts of 1886 and 1901 and the amounts of such capital which have been created issued or raised are as follows (namely):—

Description of Capital.	Rate of Dividend.	Number of Shares issued.	Nominal Amount.	Total Paid up.	Premiums received.	Remaining to be issued.	Total Amount authorised.
			£.	£.	£ s. d.	£ s. d.	£
Act of 1886— Original Shares (Ordinary)	10%	1950	10	19,500	nil	nil	19,500
Additional Shares (Ordinary)	7%	1050	10	10,500	nil	nil	10,500
Preference Shares		none	issued.				
Act of 1901— Additional Shares (Ordinary)	7%	1050	10	10,500	3,833 5 0	15,666 15 0	30,000
Preference Shares		none	issued.				
				£40,500	£3,833 5 0	£15,666 15 0	£60,000
			Rate of Interest.	Total Amount borrowed.	Remaining to be issued.	Total Amount authorised.	
				£	£	£	
Loans under Acts of 1886 and 1901. Mortgage Debentures			5% 5½% and 6%	12,325	5,300	17,625	

And whereas the Company's supply of water is obtained from wells and adits in the chalk at pumping stations in the parishes of Ditchling Keymer and Clayton and it is expedient for the purpose of preventing the contamination of and ensuring the continued purity of the water supplied by the Company that the Company be empowered to purchase the lands in this Act described:

And whereas the demands for water within the Company's limits of supply and in parishes adjacent

thereto have increased and are increasing and it is expedient to extend the said limits and to authorise the Company to construct new works : A.D. 1925.

And whereas it is expedient to authorise the Company to raise additional capital and to confer further powers upon them :

And whereas the objects aforesaid cannot be effected without the authority of Parliament :

And whereas plans and sections of the works authorised by this Act showing the lines and levels thereof the plans also showing the lands liable to be taken compulsorily under the powers of this Act and a book of reference to the plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of such lands were duly deposited with the clerk of the peace for the county of East Sussex and are in this Act respectively referred to as the deposited plans sections and book of reference :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

PRELIMINARY.

1. This Act may be cited as the Burgess Hill Water Act 1925 and the Burgess Hill Water Acts 1871 to 1901 the Burgess Hill Water Order 1908 and the Burgess Hill Water Company (Modification of Charges) Order 1922 and this Act may be cited together as the Burgess Hill Water Acts and Orders 1871 to 1925 and each of those Acts and Orders is hereinafter referred to separately as the Act or Order of the year in which the same was passed. Short and collective titles.

2. The following Acts and parts of Acts so far as the same respectively are applicable for the purposes of and not varied by or inconsistent with this Act are hereby incorporated with and form part of this Act namely :— Incorporation of general Acts.

The Lands Clauses Acts ;

The Waterworks Clauses Acts 1847 and 1863 (except the words "with the consent in writing of the

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owner or reputed owner of any such house or of the agent of such owner" in section 44 of the Waterworks Clauses Act 1847);

The Companies Clauses Consolidation Act 1845 (except the provisions relating to the conversion of borrowed money into capital);

Part I. (relating to cancellation and surrender of shares) Part II. (relating to additional capital) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts :

Provided that the incorporation of the Lands Clauses Acts with this Act shall be subject to the following exceptions and modifications :—

(a) All claims for compensation made by a tenant or leaseholder upon the Company under this Act or any Act incorporated herewith shall if the person claiming has no greater interest in the land in respect of which compensation is claimed than as tenant from year to year or as a leaseholder for any term of which not more than eighteen months remain unexpired at the time at which the claim is made be determined in manner provided by section 121 of the Lands Clauses Consolidation Act 1845;

(b) Any question of disputed compensation under this Act or any Act incorporated herewith (other than a question required to be determined by two justices) shall be determined by a single arbitrator to be agreed upon between the Company and the person claiming the compensation or in default of such agreement appointed by the Ministry of Health on the application of either party.

Interpreta-
tion.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith shall have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act—

“the Company” means the Burgess Hill Water Company;

“the limits of supply” means the limits for the time being of the Company for the supply of water; A.D. 1925.

“the undertaking” means the undertaking for the time being of the Company authorised by the Burgess Hill Water Acts and Orders 1871 to 1925;

“the directors” means the directors of the Company.

LANDS AND WORKS.

4. For the purpose of preventing the contamination of any water which can or may be intercepted taken or pumped by means of the pumping stations of the Company in the parishes of Ditchling Keymer and Clayton and any well adit or other work connected therewith and of ensuring the continued purity of the water to be obtained from those pumping stations the Company may enter upon and take either compulsorily or by agreement the lands hereinafter described in the county of East Sussex as shown on the deposited plans and described in the deposited book of reference and may hold and use the same for the purposes of and in connection with the undertaking. Power to purchase lands.

The lands above referred to are—

In the rural district of Cuckfield—

- (1) Lands (exclusive of the premises known as Clayton Windmills) in the parish of Clayton comprising about one hundred and fifteen acres and bounded on the north partly by the southern boundary of Underhill Lane and partly by the Clayton pumping station of the Company on the west partly by Clayton Court Farm and partly by the western boundary of the said parish on the south partly by the northern boundary of Mill Lane to the extreme south-west point of the said Clayton Windmills thence by an imaginary line leading in a south-easterly direction therefrom to the point where the road leading to New Barn crosses the southern boundary of the said parish and then following such boundary to the extreme south-east

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point thereof and on the east by an imaginary line drawn in a south-easterly direction from the point where the property known as Clayton Holt meets the said Clayton pumping station of the Company to the before mentioned extreme south-east point of the boundary of the said parish of Clayton being the lands numbered 239 (part) 240 241 249 249a 250 250a 247 251 and 252 (part) in the said parish on the $\frac{1}{2500}$ Ordnance map edition 1910 of the county of East Sussex;

- (2) Lands in the parish of Keymer comprising about eighty-five acres and bounded on the north by the roadway leading towards Ditchling Beacon and on the west south and east by the boundary of the parish of Keymer being the lands numbered 268 (part) 269 and 270 in the parish of Keymer on the said Ordnance map ;
- (3) A strip of land in the parish of Keymer comprising about eighteen acres situate between the southern boundary of Underhill Lane and the before mentioned roadway leading towards Ditchling Beacon and extending from east to west from the eastern boundary of the parish of Keymer to the bridle road leading from Underhill Lane to the before mentioned roadway leading towards Ditchling Beacon being the lands numbered 265 and 268 (part) in the parish of Keymer on the said Ordnance map ;
- (4) Lands in the parish of Keymer comprising about thirty-eight acres being the properties numbered 230 232 and 234 in the said parish on the said Ordnance map bounded on the north by the southern boundary of the lands numbered 228 and 235 on the said Ordnance map on the west by the western boundary of the parish of Keymer on the south by the northern boundary of Underhill Lane and on the east by property belonging or reputed to belong to the Company ;

- (5) Lands in the parish of Clayton comprising about fifty-five acres and bounded on the north partly by New Road and partly by the eastern boundary of the said parish on the west partly by the road leading from New Road to Underhill Lane as far as opposite the southernmost corner of the fish pond situate on the west side of such first mentioned road thence skirting round the north-east and south boundaries of lands fronting the said road leading to Underhill Lane and thence following the said road and Underhill Lane to a point opposite the north-west corner of the Clayton pumping station of the Company on the south by the northern boundary of Underhill Lane and on the east by the lands lastly hereinbefore described being the lands numbered 226 227 and 245 (part) in the parish of Clayton on the said Ordnance map:

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In the rural district of Chailey—

- (6) Lands in the parish of Ditchling comprising about one hundred and ten acres and bounded on the north by Underhill Lane on the west by the western boundary of the parish of Ditchling on the south by an imaginary straight line drawn in a north-easterly direction from the point where the roadway leading towards Ditchling Beacon cuts the boundary of the said parish to a point about eighteen yards north-west of the level mark 716 on the said Ordnance map and on the east partly by an imaginary straight line drawn in a northerly direction from the last mentioned point till it meets the bridle road leading past Burnt House at a point where the extreme eastern point of land numbered 559 on the said Ordnance map meets the said bridle road and thence following such bridle road till it meets Underhill Lane being the lands numbered 556 557 558 559 and 574 (part) in the parish of Ditchling on the said Ordnance map but excepting from the last mentioned

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lands the piece of land comprising about two acres belonging or reputed to belong to the Company and situate on the north side of the Coombe Bottom pumping station of the Company;

- (7) Lands in the parish of Ditchling comprising about seventeen acres and bounded on the north partly by the western boundary of the said parish and partly by Lodge Lane on the west by property belonging or reputed to belong to the Company on the south by the northern boundary of Underhill Lane and on the east by Lodge Lane aforesaid and being the lands numbered 533 and 535 in the parish of Ditchling on the said Ordnance map.

Certain lands before sale &c. to be offered to owner of lands from which they were originally taken or to adjoining owners.

5. Before the Company sell exchange or otherwise dispose of any of the lands described in the section of this Act the marginal note of which is "Power to purchase lands" which they may have acquired they shall unless such lands be situate within a town or be lands built upon or used for building purposes first offer to sell the same to the person then entitled to the lands (if any) from which the same were originally severed or if such person refuse to purchase the same or cannot after diligent inquiry be found then the like offer shall be made to the person or to the several persons whose lands shall immediately adjoin the lands so proposed to be sold such persons being capable of entering into a contract for the purchase of such lands and where more than one such person shall be entitled to such right of pre-emption such offer shall be made to such persons in succession one after another in such order as the Company shall think fit and sections 129 to 132 of the Lands Clauses Consolidation Act 1845 shall apply.

Compensation in case of buildings recently erected.

6. In settling any question of disputed purchase money or compensation for lands acquired by the Company under the powers of this Act the tribunal settling the same shall not award any sum of money for or in respect of any improvement or alteration made or any building erected after the first day of November one thousand nine hundred and twenty-four if in the opinion of the tribunal the improvement alteration or

building in respect of which the claim is made was made with a view to obtaining or increasing compensation nor in the case of any estate or interest in the lands created after the said date which in the opinion of the tribunal was created with a view to obtaining or increasing compensation shall any sum of money be awarded so as to increase the total amount of compensation which would otherwise have been required to be paid in respect of the acquisition by the Company of such lands. A.D. 1925.
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7. The powers of the Company for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act. Period for compulsory purchase of lands.

8. All private rights of way over any lands which may be acquired compulsorily under the powers of this Act shall as from the date of the acquisition of such lands be extinguished. Provided that the Company shall make full compensation to all parties interested in respect of any such rights and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement. Private rights of way over lands taken compulsorily.

9. The Company and their surveyors officers contractors and workmen may from time to time at all reasonable times in the day upon giving in writing for the first time twenty-four hours and afterwards from time to time twelve hours previous notice enter upon and into the lands and premises by this Act authorised to be taken and used as aforesaid or any of them for the purpose of surveying and valuing the said lands and premises without being deemed trespassers and without being subject or liable to any fine penalty or punishment on account of entering or continuing upon any part of the said lands and premises. Power to enter upon property for survey and valuation.

10. In addition to any other lands which the Company are by this Act or any other Act authorised to take or purchase they may by agreement take purchase or lease and hold for the purposes of this Act and for the general purposes of their undertaking any lands not exceeding in the whole twenty-five acres but the Company shall not upon any such lands create or permit any Purchase of lands by agreement.

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nuisance and no buildings shall be erected on such lands except such as may be used for offices and dwellings for persons in their employ or such buildings and works as may be incidental to or connected with the purposes of the undertaking or for farming purposes.

Power to
hold lands
and exercise
powers for
protection
of waters.

11.—(1) For the purpose of protecting any of their waters and waterworks against contamination nuisance encroachment or injury the Company may by agreement purchase take on lease and acquire any lands or may acquire an option to purchase any lands and may hold any such lands so purchased taken on lease or acquired by them and any other lands which the Company may have acquired for the purposes of the undertaking so long as they shall deem it necessary or expedient for those purposes.

(2) Provided that the Company shall not create or permit the creation or continuance of any nuisance on any lands acquired under this section nor shall they erect any buildings thereon except offices and dwellings for persons in their employment and such buildings and works as may be incident to or connected with the undertaking but the restrictions of this section as to the erection of buildings shall not apply in respect of lands leased or sold by the Company.

(3) The Company may in or upon the lands referred to in subsection (1) of this section and in and upon the lands described in the section of this Act of which the marginal note is "Power to purchase lands" construct and lay down drains sewers watercourses and other works and conveniences necessary or proper for the purpose of intercepting or taking all foul waters arising or flowing upon such lands or necessary or proper for preventing the water which the Company are empowered to take from being contaminated and the Company may for the purposes aforesaid carry any such drain sewer or watercourse under across and along any street or road subject and according to the provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes Provided that the Company shall not be entitled under the provisions of this subsection to break up any main road without the consent in writing of the East Sussex County Council which consent shall not be unreasonably withheld

but if any difference arises between the county council and the Company touching this proviso such difference shall be settled by an arbitrator to be agreed upon between them or failing such agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers.

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(4) The Company may make and carry into effect agreements with the rural district councils of Cuckfield and Chailey in the county of East Sussex for the purpose of draining lands and houses within the Company's limits of supply or for more effectually preserving the purity of any waters flowing percolating or drawn on from through or under such lands and houses.

12. Notwithstanding anything in this or any other Act or Acts to the contrary the Company may retain hold and use for such time and for the purposes of the undertaking or may sell lease exchange or otherwise dispose of in such manner and for such consideration and purpose and on such terms and conditions as they may think fit and either in consideration of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands or any interest therein acquired by them under this Act or the Acts of 1886 and 1901 and may sell exchange or dispose of any rents reserved on the sale lease exchange or disposition of such lands or interest therein and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange Provided that the lands acquired under the section of this Act of which the marginal note is "Power to purchase lands" shall not be leased except for agricultural or farming purposes and if sold or exchanged or otherwise disposed of shall be subject to the provisions of the section of this Act of which the marginal note is "Certain lands before sale &c. to be offered to owner of lands from which they were originally taken or to adjoining owners."

Retention
and disposal
of lands.

13. Subject to the provisions of this Act the Company may wholly in the county of East Sussex and in the lines and situation and upon or under the lands delineated on the deposited plans and described in the deposited book of reference make and maintain the following works

Power to
make works.

A.D. 1925. shown on the deposited plans and sections (that is to say) :—

Work No. 1 An adit or heading situate wholly in the parish of Clayton in the rural district of Cuckfield commencing at the existing well at the Company's pumping station at Clayton thence running south-east for a distance of thirty chains or thereabouts and terminating at a point twenty-four chains or thereabouts measured in an east-south-easterly direction from the eastern end of Clayton Windmills :

Work No. 2 An adit or heading situate wholly in the parish of Clayton in the rural district of Cuckfield commencing at the existing well at the Company's pumping station at Clayton thence running west-south-west for a distance of twenty-two chains or thereabouts and terminating at a point eleven chains or thereabouts measured in a southerly direction from Clayton Court Farmhouse :

Work No. 3 An adit or heading situate partly in the parish of Ditchling in the rural district of Chailey and partly in the parish of Keymer in the rural district of Cuckfield commencing at the existing well at the Company's pumping station at Coombe Bottom thence running westward for a distance of eleven chains or thereabouts and terminating at a point six chains or thereabouts measured in a west-north-westerly direction from the north-west corner of the existing high level reservoir at Coombe Bottom :

Work No. 4 An adit or heading situate wholly in the parish of Ditchling in the rural district of Chailey commencing at the existing well at the Company's pumping station at Coombe Bottom thence running eastward for a distance of eighteen chains or thereabouts and terminating at a point twelve chains or thereabouts measured in a south-westerly direction from Burnt House.

In addition to the foregoing works the Company may upon or under the said lands make and maintain all such buildings machinery works and apparatus of whatever character as may be necessary or convenient in connection with or subsidiary to the before mentioned

works or any or either of them but nothing in this section shall exonerate the Company from any action indictment or other proceeding for nuisance in the event of any nuisance being caused or permitted by them. A.D. 1925.

14. In the construction of the works authorised by this Act the Company may deviate laterally within the limits of deviation shown on the deposited plans and vertically from the levels shown on the deposited sections to any extent. Limits of deviation.

15. Subject to the provisions of this Act the Company may (so far as they are not already empowered to do so) collect divert take pump use and appropriate for the purposes of the undertaking all underground streams springs and waters which will or may be taken or intercepted by means of the works authorised by this Act. Power to take waters.

16. If the works by this Act authorised to be constructed are not completed within ten years from the passing of this Act then on the expiration of that period the powers by this Act granted to the Company for executing the same or in relation thereto respectively shall cease except as to so much thereof as is then completed. Provided that the Company may at any time after the expiration of the said period alter improve enlarge extend or renew any of such works as they may think expedient to provide for the requirements of the undertaking. Period for completion of works.

17.—(1) For the purpose of executing constructing laying down enlarging extending repairing cleansing emptying or examining any waterworks of the Company the Company may cause the water in any such work to be discharged into any available stream ditch or watercourse. Discharge of water into streams.

(2) In the exercise of the power conferred by this section the Company shall do as little damage as may be and shall pay compensation to all persons for all damage sustained by them by reason or in consequence of the exercise of such power the amount of compensation to be settled in case of difference by arbitration in accordance with the provisions of the Arbitration Act 1889.

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LIMITS OF SUPPLY.

Extension of
limits of
supply.

18. The limits within which the Company may supply water and exercise the powers conferred upon them by the Burgess Hill Water Acts and Orders 1871 to 1925 shall extend to and include the parish of Streat in the rural district of Chailey in the county of East Sussex and so much of the parish of Pyecombe in the rural district of Cuckfield in the county of East Sussex as lies to the north and north-westward of an imaginary line commencing at the point where the road leading from the Clayton Windmills to the main London Road leaves the western boundary of the parish of Clayton thence running westward along the southern boundary of such road to the point where it reaches the said main London Road and thence continuing westward in a straight line till it reaches the eastern boundary of the parish of Newtimber at the point marked 433 on the six-inch Ordnance map for the parish of Pyecombe Edition 1912 and within and throughout such extended limits the Burgess Hill Water Acts and Orders 1871 to 1925 and all regulations made thereunder shall henceforth be in full force and have effect.

FINANCIAL PROVISIONS.

Power to
Company to
raise addi-
tional
capital.

19. The Company may from time to time raise additional capital not exceeding in the whole thirty thousand pounds by the creation and issue of new ordinary shares or stock or new preference shares or stock or wholly or partially by one or more of those modes respectively but the Company shall not issue any share of less nominal value than ten pounds. Provided that it shall not be lawful for the Company to create and issue under the powers of this Act any greater nominal amount of capital than shall after taking into account the premiums or discounts (if any) which may be obtained or allowed respectively on the issue thereof be sufficient to produce the sum of thirty thousand pounds.

Incidents of
new shares
or stock.

20. Except as is by this Act otherwise provided the capital in new shares or stock created by the Company under this Act and the new shares or stock therein and the holders thereof respectively shall be subject and

entitled to the same powers provisions liabilities rights privileges and incidents whatsoever in all respects as if that capital were part of the now existing capital of the Company of the same class or description and the new shares or stock were shares or stock in that capital. The capital in new shares or stock so created shall form part of the capital of the Company.

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21. Every person who becomes entitled to new shares or stock shall in respect of the same be a holder of shares or stock in the Company and shall be entitled to a dividend with the other holders of shares or stock of the same class or description proportioned to the whole amount from time to time called and paid on such new shares or to the whole amount of such stock as the case may be.

Dividends
on new
shares or
stock.

22. Except as otherwise expressly provided by the resolution creating the same no person shall be entitled to vote in respect of any new shares or stock to which a preferential dividend shall be assigned.

Restrictions
as to votes in
respect of
preference
shares or
stock.

23. The Company shall not in any year pay out of their profits any larger dividend on the additional capital to be raised under the powers of this Act than at such rate not exceeding seven per centum as the directors may determine at the time or times of the creation or issue of such capital unless a larger dividend be at any time necessary to make up a deficiency of any previous dividend on any portion of such capital as may be issued as ordinary capital which shall have fallen short of such rate as so determined.

Profits of
Company on
additional
capital
limited.

24. In case in any half-year the net revenues of the Company applicable to dividend shall be insufficient to pay the full amount of the prescribed maximum rate of dividend on each class of ordinary shares or stock in the capital of the Company a proportionate reduction shall be made in respect of each class of ordinary shares or stock.

Dividend on
different
classes of
stock or
shares.

25.—(1) All shares or stock in the additional capital created under the powers of this Act shall subject to the provisions of this Act be issued in accordance with the provisions of this section.

New shares
or stock to
be sold by
auction or
tender.

(2) All shares or stock so to be issued shall be offered for sale by public auction or tender in such manner at

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— Company shall from time to time determine Provided
as follows:—

- (a) Notice of the intended sale shall be given in writing to the clerk of each local authority within the limits for the supply of water by the Company and to the secretary of the London Stock Exchange at least seven days before the day of auction or the last day for the reception of tenders as the case may be and shall also be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the said limits of supply:
- (b) A reserve price shall be fixed and notice thereof shall be sent by the Company in a sealed letter to be received by the Board of Trade not less than twenty-four hours before but not to be opened till after the day of auction or last day for the receipt of tenders as the case may be:
- (c) No lot offered for sale shall comprise shares or stock of greater nominal value than one hundred pounds:
- (d) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum. In the case of a sale by auction a bid shall not be recognised unless it is in advance of the last preceding bid:
- (e) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Company within three months after the date of the auction or of the acceptance of the tender as the case may be.

(3) Any shares or stock which have been so offered for sale and are not sold may be offered at the reserve price to the holders of ordinary and preference shares or stock of the Company in accordance with the provisions of sections 18 19 and 20 of the Companies Clauses Act 1863 and to the employees of the Company and to the consumers of water supplied by the Company in such proportions as the Company may think fit or to one or more of these classes of persons only. Provided in the case of an offer to holders of shares or stock that if the

aggregate amount of shares or stock applied for shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively. .

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(4) Any shares or stock which have been offered for sale in accordance with subsections (2) and (3) of this section and are not sold shall be again offered for sale by public auction or by tender in accordance with the provisions of this section and any such shares or stock then remaining unsold may be otherwise disposed of at such price and in such manner as the directors may determine for the purpose of realising the best price obtainable.

(5) As soon as possible after the conclusion of the sales the Company shall send a report thereof to the Board of Trade stating the total amount of the respective shares or stock sold the total amount obtained as premium (if any) and the highest and lowest prices obtained for the respective shares or stock.

26. Notwithstanding anything in the Burgess Hill Water Acts and Orders 1871 to 1925 the Company may with the consent of the Board of Trade and subject to such conditions as that Board may think fit to impose offer for subscription by the public the whole or any part of any ordinary or preference capital which is issued by the Company after the passing of this Act.

Power to
offer un-
issued
capital by
subscrip-
tion.

27. All moneys raised under this Act or any other Act relating to the Company including premiums (after deducting from such moneys the expenses of and incidental to the issue of shares or stock under the provisions of any such Act) shall be applied only to purposes to which capital is properly applicable and any sum of money which may arise by way of premium from the issue of such shares or stock shall not be considered as part of the capital of the Company entitled to dividend.

Application
of moneys.

28. The Company may subject to the provisions of this Act borrow on mortgage of the undertaking any sum or sums not exceeding in the whole one third part of the amount of the additional capital which at the time of borrowing has been raised under the powers.

Power to
borrow.

A.D. 1925. — of this Act. But no sum shall be borrowed in respect of any capital so raised until the Company have proved to a justice before he gives his certificate under section 40 of the Companies Clauses Consolidation Act 1845 that the whole of the stock or shares at the time issued together with the premium (if any) realised on the sale thereof have been fully paid up.

Existing
mortgages
to have
priority.

29. All mortgages granted by the Company in pursuance of the powers of any Act of Parliament before the passing of this Act and subsisting at the passing hereof shall during the continuance of such mortgages and subject to the provisions of the Acts under which such mortgages were respectively granted have priority over any mortgages granted by virtue of this Act but nothing in this section contained shall affect any priority of the interest of any debenture stock at any time created and issued by the Company.

For appoint-
ment of
receiver.

30. Section 35 (Appointment of receiver) of the Act of 1901 is by this Act repealed but without prejudice to any appointment heretofore made or to the continuance of any proceedings which may have been commenced under any such provisions prior to the passing of this Act and in lieu thereof the mortgagees of the Company may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver. In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than five thousand pounds in the whole.

Debenture
stock.

31. The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 as amended by the Companies Clauses Act 1869 and of section 36 of the Act of 1901.

Issue of re-
deemable
preference
capital and
debenture
stock.

32.—(1) The Company may create and issue all or any of the preference shares or stock and all or any debenture stock which they are authorised by this Act to create and issue so as to be redeemable on such terms and conditions as may be specified in a resolution of the Company passed at a special meeting convened for the purpose.

(2) If it is so provided in the resolution the Company may— A.D. 1925.

(a) Call in and pay off the shares or stock or any part thereof at any time before the fixed date of redemption; and

(b) Redeem the shares or stock or any part thereof either by paying off the same or by issuing to any shareholder or stockholder subject to his consent other shares or stock in substitution therefor and may for the purpose of providing money for paying off the shares or stock or of providing substituted shares or stock create and issue new shares or stock (either redeemable or irredeemable) or re-issue shares or stock originally created and issued under this section Provided that the creation and re-issue for the purpose of any particular class of shares or stock does not make the total nominal amount of such shares or stock exceed the amount of that class of shares or stock which the Company are for the time being authorised to create save so far as such creation and re-issue is for the purpose of paying off shares or stock created and issued under the provisions of this section or of providing shares or stock substituted for the same thereunder.

(3) The Company shall not redeem out of revenue any preference shares or stock or debenture stock created under this section.

33. All money to be raised by the Company on mortgage or debenture stock under the provisions of any former Act relating to the Company or under this Act shall have priority against the Company and the property from time to time of the Company over all other claims on account of any debts incurred or engagements entered into by them after the passing of this Act Provided always that this priority shall not affect any claim against the Company or their property in respect of any rentcharge granted or to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted or made to the Company which is entitled to rank in priority to or *pari passu* with the interest on their mortgages or

Priority of
money
raised on
mortgage or
debenture
stock.

A.D. 1925. debenture stock nor shall anything in this section contained affect any claim for land taken used or occupied by the Company for the purposes of their undertaking and works or injuriously affected by the construction thereof or by the exercise of any powers conferred upon the Company.

Receipt in
case of
persons not
sui juris.

34. If any money is payable to a shareholder or mortgagee or debenture stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be sufficient discharge to the Company.

Application
of funds.

35. The Company may apply to any of the purposes of this Act to which capital is properly applicable any of the moneys which they now have in their hands or which they have power to raise by shares stock debenture stock or mortgage under and by virtue of the Burgess Hill Water Acts and Orders 1871 to 1922.

MISCELLANEOUS.

For pro-
tection of
Southern
Railway
Company.

36. For the protection of the Southern Railway Company (hereinafter referred to as "the Southern Company") the following provisions shall unless otherwise agreed have effect:—

- (1) All works executed in pursuance of this Act and involving interference with or in any way affecting the railways bridges approaches level crossings works lands and property of the Southern Company (hereinafter together referred to as "the railways of the Southern Company") and all works of maintenance repair renewal and removal of such works involving such interference or affection (the said works executed in pursuance of this Act and the said works of maintenance repair renewal or removal being hereinafter referred to as "the said works") shall be done under the superintendence and to the reasonable satisfaction of the chief engineer of the Southern Company (hereinafter referred to as "the engineer") and according to plans to be previously submitted to and approved by him in writing or in case of difference as may be

A.D. 1925.

determined by arbitration in manner hereinafter provided. Provided always that if the engineer shall not approve or disapprove any plans so submitted to him within one month after the same are delivered or shall neglect or refuse to superintend the said works the Company may proceed with the same without the approval of the plans or without the superintendence of the engineer as aforesaid :

- (2) The said works shall be done by and at the expense of the Company who shall restore and make good to the reasonable satisfaction of the engineer any portion of the railways of the Southern Company which may be disturbed or interfered with and the said works shall be carried out so as to cause as little injury as may be to the railways of the Southern Company and so as not to cause any interference with the passage or conduct of traffic thereover. Provided nevertheless that if the engineer shall think it necessary that the said works or any of them shall be done or carried out by the Southern Company and shall notify such desire to the Company the said works in respect of which the engineer shall have notified such desire shall be done or carried out by the Southern Company accordingly at the cost of the Company :
- (3) The Company shall bear and on demand pay to the Southern Company all reasonable costs of the superintendence by the engineer of the said works when the same are done or carried out by the Company and all proper costs of watching lighting and protection of the railways of the Southern Company during the carrying out of the said works but such superintendence by the Southern Company shall not relieve the Company from liability for any accident which may be occasioned by or through the said works or by their contractors agents and workmen :
- (4) If any injury or interruption of traffic shall arise from or be in any way owing to the said works or to the bursting leakage or failure of any conduits pipes or other works of the Company the Company shall make full compensation to the Southern Company in respect thereof :

A.D. 1925.

- (5) The Company shall from time to time pay to the Southern Company any additional expense which the Southern Company may incur in effecting any repair renewal widening or alteration of the railways of the Southern Company by reason of the existence of any conduits pipes or works of the Company in upon across or under the railways of the Southern Company :
- (6) The Southern Company may at any time or times hereafter upon giving to the Company not less than seven days' notice thereof in writing signed by the engineer call upon the Company to divert or alter the level of any conduit pipe or other work of the Company passing in over upon across or under or in any way affecting the railways of the Southern Company so as to admit of any repairs renewals widenings alterations or extensions of the railways of the Southern Company which they may think necessary without being liable to pay the costs of such diversion or alteration or to pay any compensation in respect thereof :
- (7) Any dispute or difference which may arise between the Company and the Southern Company with reference to the provisions of this section or in any way arising thereout or as to any works to be carried out in pursuance thereof shall be settled by arbitration by an engineer to be agreed upon between the Company and the Southern Company or failing agreement by an engineer to be appointed by the Board of Trade on the application of the Company and the Southern Company or either of them.

For protec-
tion of East
Sussex
County
Council.

37. The provisions of section 11 (For protection of county council of East Sussex) of the Order of 1908 shall extend and apply to the works and operations of the Company within their limits of supply as extended by this Act which in any way affect any county main road or county bridge in the county of East Sussex as if that section had been re-enacted in this Act and as if the words "the Company" had been inserted in that section instead of the words "the undertakers."

A.D. 1925.

38. It shall be lawful for the Company to make superannuation and other allowances and to pay or contribute towards pensions or gratuities to any officers servants or employees of the Company and for that purpose to apply the funds and revenues of the Company.

Power to make superannuation and other allowances.

39. The directors may subscribe or make donations to infirmaries and hospitals and convalescent homes and other similar institutions and objects or to industrial exhibitions or to the benevolent or sick funds of the officers servants and employees of the Company and may for any of these purposes apply the funds and revenues of the Company.

Power to directors to make donations subscriptions &c.

40.—(1) Any urban or rural district council whose district is in whole or in part within the limits of supply may give and enter into any guarantee or contract for securing payment to the Company of such periodical or other sum or sums at such time or times in such manner and subject to such stipulations as may be agreed by and between such council and the Company for the purpose of or with respect to the providing or laying down by the Company of any main pipe or works for the supply of water within any part of such district which is within the limits of supply.

Guarantees by district councils.

(2) The giving of such guarantee and the performance of any contract in relation thereto shall be deemed to be a purpose for which under the provisions of any general Act relating to the powers of such council they may incur expenditure and any such council may raise in like manner as money may be raised under the provisions of any such general Act any money which may become payable to the Company under this section.

41. In addition to the powers which the directors may exercise under the Companies Clauses Acts 1845 to 1880 they may from time to time determine the remuneration of the secretary of the Company.

Directors may determine remuneration of secretary.

42. Notwithstanding anything contained in the Companies Clauses Consolidation Act 1845 where several persons are jointly entitled to and registered as holders of any shares or stock any one of those persons may vote at any meeting either personally or by proxy in respect of the shares or stock as if he were solely entitled thereto but if more than one of the joint holders be present at

Joint holders.

A.D. 1925. any meeting personally or by proxy that one of the said persons so present whose name stands first on the register in respect of the shares or stock shall alone be entitled to vote in respect thereof. Several executors or administrators of a deceased member in whose name any shares or stock stands shall for the purposes of this section be deemed joint holders thereof.

Costs of
Act.

43. All costs charges and expenses of and incidental to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

Printed by EYRE and SPOTTISWOODE, LTD.,

FOR

WILLIAM RICHARD CODLING, Esq., C.V.O., C.B.E., the King's Printer of
Acts of Parliament.

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